

Smt. Krishna Devi Mishra v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 15 February 2010 · Writ-C No. 71112 of 2009 · **Writ disposed; remaining bill grievance relegated to Supply Code forum.**

HEADNOTE

Where a consumer's representation against an electricity bill has already been considered and an amended bill issued, a mandamus to decide that representation does not survive. Any remaining grievance against the amended bill must be taken to the forum under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Krishna Devi Mishra sought a mandamus that the respondents decide her representation dated 20 August 2009 on a disputed electricity bill. During listing the licensee produced a temporary disconnection slip dated 17 March 2008 recording meter reading 40709 and arrears of Rs.55,261. Counter, supplementary counter and rejoinder affidavits were then filed. The supplementary counter placed an amended bill dated 31 January 2010 for Rs.93,974, after Rs.12,000 had been accounted for on the representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::forum

bill dispute — statutory forum

HOLDING

Once the representation on a bill dispute has been considered and an amended bill issued, a consumer still aggrieved of that bill must take the forum provided under the U.P. Electricity Supply Code, 2005; a writ of mandamus to decide the representation does not survive. ¶ 1

FLAG court did not identify 6.5 or 6.8; referred only to the forum under the Supply Code, 2005

PRINCIPLE TAGS

relegate-to-statutory-remedy Where a consumer's representation against an electricity bill has already been considered and an amended bill issued, a mandamus to decide that representation does not survive. Any remaining grievance against the amended bill must be taken to the forum under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE AMENDED ELECTRICITY BILL DATED 31 JANUARY 2010 FOR RS.93,974

left to the forum under the U.P. Electricity Supply Code, 2005 ¶ 1